

only the son, or the nearest male, and not the female, was qualified to transmit the cult of the testator.

The expression of this view reaches, it seems to me, the strangest height, when Schwally (*ZATW.* xi. 176 ff.) endeavors to explain the word *וִקָּר*, 'male,' as connected with *קָרָא אֱלֹהִים*, 'to call in cult upon God,' and meaning therefore first 'a cultic person,' then, on the assumption, according to the view in question, that this cultic person can be in all Israelitish and Semitic antiquity only a man, meaning, secondly, 'a male.' This sexual meaning was then, thirdly, transferred from men to animals, and reached the highest point of development in the Arabic and Aramaic in the meaning, fourthly, "das männliche Glied." Leaving out of consideration the assumption as to cult, such a view of an etymological development from a distinct spiritual meaning to the lowest physical will never commend itself as an improvement on the older view represented by Gesenius, *s.v.*

None of the three authorities mentioned seems to speak from independent investigation of the subject of woman's relation to the Hebrew or Semitic cult. All three are evidently dependent upon Stade, and simply follow him.

Stade reaches his conclusion in a peculiar manner. He is dealing with the Hebrew family in pre-prophetic time, and he finds in the customs of mourning evidences of a cult of the dead and indications of ancestor-worship. He concludes from these indications that ancestor-worship was a prime factor in the formation of the ancient Israelitish family. Here he begins to call attention to similarities in the organization of the ancient Greek, Roman, and Indian families, and to draw parallels between them and the Semitic. The ancient Indo-Germanic family was a "Cultgenossenschaft," held together by the common bond of worship of the ancestors of the family, whose altar is the family altar, and whose priest is the father and the lord of the house. This cult explains the most ancient laws of the people. Can similar ancient Hebrew laws find a similar explanation? In answering this question affirmatively Stade proceeds to instance the law of inheritance. This law among the ancient Hebrews, as among the ancient Greeks and Romans, was originally that of agnates. In ancient Israel the son only is the heir, not the daughter. Stade asserts that wherever this law of inheritance is found, the ground for it is that only the son, or the nearest male relative, taking his place as the heir, can perpetuate the cult of the testator (*Geschichte* i. 388-391).